

IAS MAINS 2020

VALUE ADDITION

GS - I

GS - II

GS - III

GS - IV

12 QUESTIONS WITH MODEL ANSWERS

MODULE - 8

GS – I ... HISTORY, HERITAGE AND CULTURE

4

During partition, Bengal with history of violent conflicts was relatively peaceful but Punjab, where different communities lived together for decades with peace, witnessed carnage. How do you explain this paradox? (250 Words)

5

“The constitution making process through Constituent Assembly truly reflected tolerance and diversity”. Support the statement by indicating valid reasons. (150 Words)

6

Dr. B. R. Ambedkar famously said “The Constitution provides only the organs of the State and the working depends on the people and political parties”. Discuss. (250 Words)

GS – II ... CONSTITUTION AND POLITY

- 10 Enumerate various laws which are allegedly leading to the imbalance of power between the State and the Citizen. Is there any need for continuation of such laws in democratic polity? Discuss from the Indian context. (250 Words)
- 11 “The Supreme Court’s frequent interventions in ordering the floor tests impinges on the independence of the Legislatures”. Do you agree? Give reasoned arguments. (150 Words)
- 12 How the delay by the apex court in giving judgments on issues involving “important constitutional interpretations/questions” leads to judicial evasion? Discuss the issue with recent examples. (150 Words)

GS – III ... ECONOMIC DEVELOPMENT

- 13 During the past two decades, examine how far the forays into space by ISRO benefitted the Indian farmer? (150 Words)
- 14 In recent times, there is excessive procurement of foodgrains for public distribution system. What are the underlying reasons? Suggest various steps to make procurement and storage of foodgrains effective. (250 Words)
- 15 India's agricultural policies have inbuilt consumer bias. Do you agree? Give reasoned arguments. (250 Words)

GS – IV ...ETHICS, INTEGRITY & APTITUDE

22

Discuss the role of law as a source of ethical guidance. (150 Words)

23

Elaborate the following topics in the context of civil services:
(a) Empathy, (b) Dedication to Public Service and (c) Compassion (250 Words)

24

Discuss the ethical framework for ministries as recommended by 2nd ARC.
(150 Words)

During partition, Bengal with history of violent conflicts was relatively peaceful but Punjab, where different communities lived together for decades with peace, witnessed carnage. How do you explain this paradox? (250 Words)

Before Independence, Bengal had a history of Hindu-Muslim riots in 1946 in Noakhali. Punjab had a robust legacy of “live and let live” traditions bequeathed by efforts of Muslim Sufis, Hindu Saints and Sikh Gurus. But Punjab witnessed violent conflicts than Bengal during partition in 1947.

REASONS FOR THE PARADOX

FACTORS INSTIGATING VIOLENCE IN PUNJAB

- Violence of Rawalpindi initiated the violence.
- Hold on business and administration by Hindus and Sikhs in Lahore despite Muslim majority.
- Punjab was Muslim majority province with a large minority of Hindus and Sikhs. But fears that Muslim majority areas were to be separated from India raised suspicions on Muslims.
- Partisan government functionaries and politicians like Tara Singh flared up issues of Sikhs demands vs Muslims demands.

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FACTORS FACILITATING PEACE IN BENGAL

- Presence of Gandhi and his efforts towards peace with Muslim leader Suhrawardy.
- Leadership of Hindus and Muslims was consolidated before independence.
- Moral authority between communities mediated by Gandhi controlled violence.
- More focus on security measures as violence was anticipated.



FACTORS INSTIGATING VIOLENCE IN PUNJAB

- Nexus of ethnic activists with politicians to attack enemy community.
- Fear of uncertain future and lack of communication between leaders and estranged communities resulted in leadership crisis.
- Waning British authority and consequent unreliability of state institutions proliferated fears.
- With Radcliffe line not yet declared, people felt the need to assert their right to property and business by removing others.
- Poor focus on security measures as violent conflicts were not expected in Punjab.

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FACTORS FACILITATING PEACE IN BENGAL

- Unity by virtue of Bengali language.
- Fears of people were addressed by their leaders.
- No big violent incidents as in Rawalpindi that increased differences among communities.

CONCLUSION

Thus, leadership crisis and lack of vision in taking care of security issues are evident. Further, social, emotional and economic factors made Punjab partition as a human tragedy.

**“The constitution making process through Constituent Assembly truly reflected tolerance and diversity”. Support the statement by indicating valid reasons.
(150 Words)**

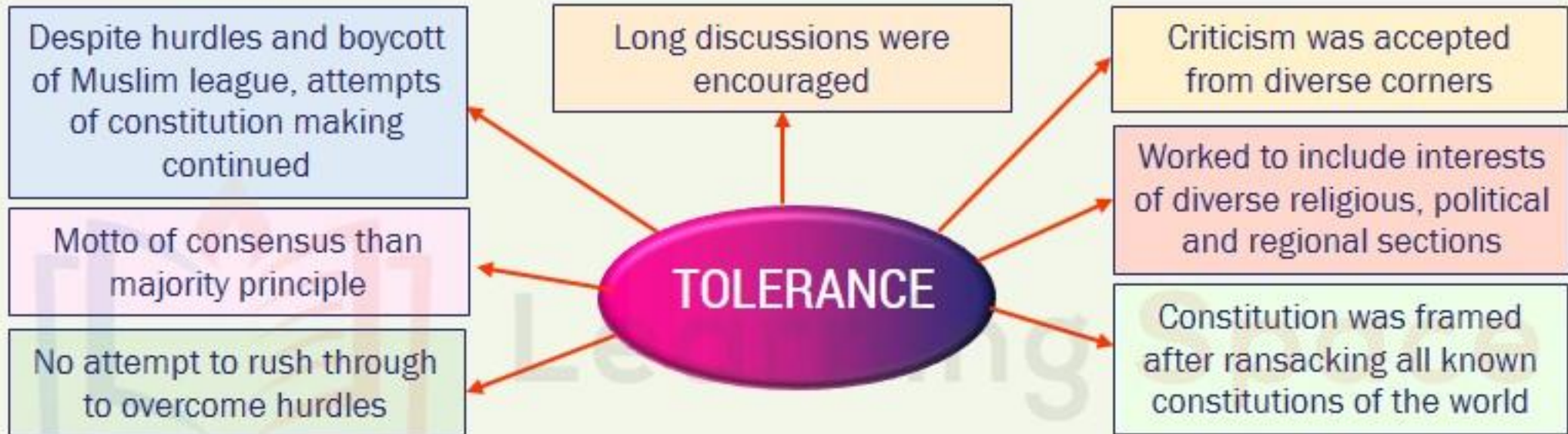
Constituent Assembly of India was established in 1946 based on recommendations of Cabinet Mission Plan. The members were indirectly elected by members of newly elected provincial assemblies. However, the traits of diversity and tolerance were retained all throughout the Constitution making.

TOLERANCE AND DIVERSITY IN CONSTITUTION MAKING

DIVERSITY

- Muslims and Sikhs received special representation as minorities.
 - Members represented diverse political parties like Congress, Muslim league, CPI, Praja Party, Unionist Muslims, Scheduled Castes Federation etc.
 - Despite Congress dominance, it included diverse opinion ranging from radical Marxists to Hindu revivalists.
 - Congress adopted non-sectarian approach and recruited best talent even by nominating members outside party's fold.
- ✓ E.g.: Nomination members from Hindu Mahasabha, Forward block to Constituent Assembly.

TOLERANCE



FINALLY

Even with such inclusiveness, diversity and tolerance, India finalized constitution within three years while it took many more years for other countries to prepare their first constitution.

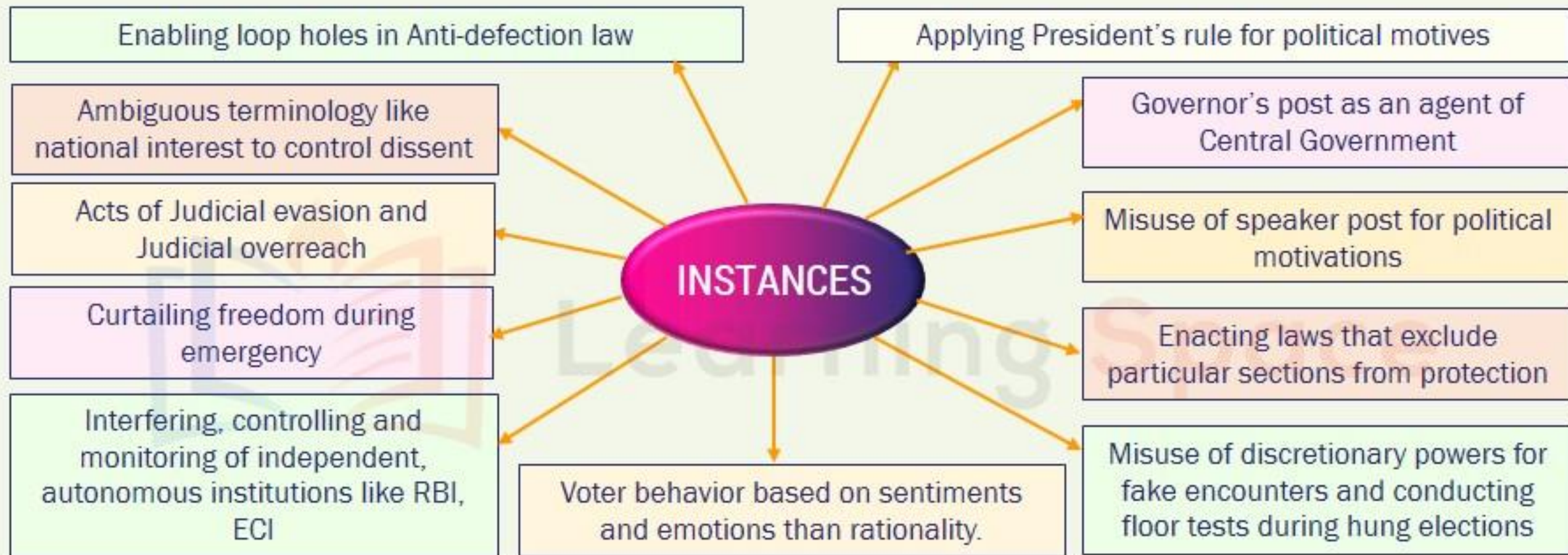
Dr. B. R. Ambedkar famously said “The Constitution provides only the organs of the State and the working depends on the people and political parties”. Discuss. (250 Words)

The working of a constitution doesn't wholly depend on its nature but the way it is put to use by people and political parties. Even the best of all Constitutions can harm society, if the provisions are operationalised with wrong intentions.

REQUIREMENTS FOR GOOD FUNCTIONING OF CONSTITUTION

1. Governments to be responsive to the concerns of opposition and opposition to be responsible and constructive
2. Protecting Basic structure of the Constitution
3. Pre and Post legislative impact assessment
4. Efficient functioning of standing committees
5. Appropriate scrutiny of legislations by Parliamentary committees
6. Preventing misuse of Parliamentary sessions through walkouts etc. by strict abidance to rules of house
7. Roster system for political parties for ensuring at least 50% of their members attend sessions

INSTANCES OF MISUSE OF PROVISIONS



THE WAY AHEAD

Multiple legislative, executive and judicial reforms to make it difficult for government to use Constitutional provisions for wrong intentions is needed. People and organs of the State must collaborate to realize best of the Constitution.

10 /C&P
GS - II

Enumerate various laws which are allegedly leading to the imbalance of power between the State and the Citizen. Is there any need for continuation of such laws in democratic polity? Discuss from the Indian context. (250 Words)

The relation between the State and Citizen is essentially a two-way power balance. While the State has claims over the Citizen to listen to state, Citizens too have claim over State; State must listen to Citizens in making decisions that affect the society as a whole.

VARIOUS LAWS LEADING TO IMBALANCE OF POWER

1. Armed Forces Special Powers Act, 1958 (AFSPA)

- Empowers security force to prohibit a gathering of 5 or more members
- Can conduct search operations anywhere and arrest anyone without warrant
- Basic rights of Citizens are affected

2. Unlawful Activities Prevention Act, 1967 (UAPA)

- Home Ministry to designate terrorists
- Restricts Freedom of speech and expression, Right to form associations and Right to assemble peacefully
- Enacted to control terrorist activities

3. Sedition under Section 124A of IPC

4. Citizenship Amendment Act, 2019

5. National Security Act, 1980 (NSA)

6. National emergency under Article 352

Responsible State



Citizens' Rights & Duties



NEED FOR CONTINUATION OF SUCH LAWS

While security and integration of the nation matter the most, participation of citizens through dissent and constructive criticism are necessary for a healthy democracy. This calls for continuation of these laws, but with certain safety valves such as:

- ✓ Judicial scrutiny for acts that affect State-Citizen power balance
- ✓ Compulsory Parliamentary committee review
- ✓ Enabling sunset clauses in acts that affect rights of citizens
- ✓ Stringent implementation of RTI Act to engender informed citizens scrutiny
- ✓ Enabling Civic Republicanism stresses the interconnection of individual freedom and civic participation to promote common good
- ✓ Civil society consultation in enacting law

CONCLUSION

The essence of Citizenship concept is participation of people in governance. Forcing to abide to duties while restricting rights will negate the citizenship status. It will further make the democracy regressive.

“The Supreme Court’s frequent interventions in ordering the floor tests impinges on the independence of the Legislatures”. Do you agree? Give reasoned arguments.
(150 Words)

Recent incidents of Supreme Court ordering floor tests in State legislatures like Maharashtra, Goa and Uttarakhand calls the separation of powers into question. Floor test in legislature is legislative domain. But non-performance of legislative and executive organs forces judiciary to impinge on independence of the legislature.

REASONS FOR JUDICIAL INTERFERENCE



THE WAY FORWARD

Following measures are needed to reduce judicial impingement:

- Recommendations of Punchhi Commission to be strictly followed by Governors
- Strengthening Anti-defection law by removing loop holes
- Transferring power to disqualify legislature members to President with prior scrutiny by Election Commission
- Checks on misuse of President rule under Article 356
- Constitutional Protection to speaker in line with British practice to enable impartial role of speaker

12/ C&P
GS - II

How the delay by the apex court in giving judgments on issues involving “important constitutional interpretations/questions” leads to judicial evasion? Discuss the issue with recent examples. (150 Words)

Judicial evasion means “a delay in judgments or interpreting the Constitution on sensitive and urgent matters of concern”. This status quo position of judiciary benefits one of the parties in the case, mostly the Government.

SOME CASES OF JUDICIAL EVASION IN INDIA

1. **Aadhaar Case:** Judgment was given 6-years after filing the petition. It allowed government to seed and connect almost all services with Aadhaar.
2. **Alok Verma Case (CBI Vs. CBI case):** Delay in judgement resulted in arbitrary shuffling of power positions by the executive.
3. **Petitions against Citizenship Amendment Act:** Refusal to stay the Act undermined the public concerns and enabled government's actions unilaterally.
4. **Electoral Bond Case:** Increased anonymity in political funding.
5. **Jammu & Kashmir and Article 370:** Undermined the citizen's interests and rights.

CONCLUSION

Judicial evasion results in failure of Constitutional power under Article 32. It fails judiciary as a protector of Indian Constitution and Citizen's rights. It down streams the principle of separation of powers by concentrating too much power with executive and legislature. This can result in civilian backlash and threats to democracy.



During the past two decades, examine how far the forays into space by ISRO benefitted the Indian farmer? (150 Words)

ISRO plays a crucial role in providing space data that is used in addressing many critical farming aspects such as crop area estimation, crop yield and production estimation, crop condition, deriving basic soil information and experimental crop insurance etc. This helps in planning and policy making for farmer's welfare.

ISRO – TOWARDS FARMERS' WELFARE

1. Crop Acreage and Production Estimate (CAPE) Project:
 - Forecasting of production of crops in selected regions
2. Forecasting Agricultural Output using Space, Agro-Meteorology and Land-based observations (FASAL)
 - Multiple seasonal forecasts of crops at national scale
3. Mahalanobis National Crop Forecast Centre (MNCFC):
 - Uses space-based observations for pre-harvest multiple crop production forecasts of nine field crops at national levels
4. National level assessment of horticulture crops.
5. Space based techniques for multiple assessment of drought conditions
3. Support through Village Resource Centers (VRCs) like tele-fishery and better management of land resources

THE WAY AHEAD

Efficient usage of these satellite services in administration and upskilling the bureaucrats in utilizing these services is necessary. Awareness campaign among farmers about these services will enable their participation.



In recent times, there is excessive procurement of food grains for public distribution system. What are the underlying reasons? Suggest various steps to make procurement and storage of food grains effective. (250 Words)

India procures food grains through Food Corporation of India's (FCI) distribution system. This procurement is around 57 million tonnes of rice and wheat against the requirement of only 21 million tonnes. With lack of storage facilities, it is resulting in wastage of food.

UNDERLYING REASONS FOR EXCESSIVE PROCUREMENT



MEASURES NEEDED

1. Removing export ban on other crops
2. Incentivize farmers to grow nutri-cereals, oil seeds etc. based on agroclimatic conditions
3. Remove skew towards particular crops like Rice and Wheat
4. Only 50% procurement in over exploited regions
5. Allowing private agencies to procure

THE WAY AHEAD

Agriculture being a state subject, Centre-State co-ordination for inclusive agricultural policies towards all crops is needed. Shifting from food security to nutri-security measures is necessary.

India's agricultural policies have inbuilt consumer bias. Do you agree? Give reasoned arguments. (250 Words)

As per OECD report, farmers have been losing 14% a year for nearly two decades but Indian consumers pay 25% less price on all commodities because of government policies. This shows Pro consumer bias in Indian agricultural policies.

INBUILT CONSUMER BIAS IN AGRICULTURAL POLICES

- Implicitly taxing farmers through export ban
- Domestic market regulations to subsidize consumers
- In 2014 and 2016, for 14 out of 20 major agricultural commodities farmers received lower prices than in global markets
- Greater focus on food security (NFSA) than on farmer's income
- Policy induced inefficiencies due to MSP below international prices
- Restrictions from Essential Commodities Act and APMC Acts adversely hit producer prices as they influence pricing, procuring, stocking etc.
- Not allowing Private sector to hold stocks, further aggravating the situation

MEASURES NEEDED

- Removing all forms of export restrictions
- Enabling active role for private sector in agriculture
- Integrating Indian agriculture into global markets
- Overhaul of acts like Essential Commodities Act and APMC
- Institutionalizing market infrastructure and intelligence
- Direct income transfer than MSP
- Paying fixed income to farmers for the ecological services provided through agriculture

WAY AHEAD

Schemes like PM Kisan and PM Kisan Maan-Dhan Yojana are right steps in protecting farmers' interests. Balancing the interests of both producers and consumers is necessary for attaining goal of sustainable and evergreen agriculture. Government policies should incentivize rather than adversely impacting the farmers.

Discuss the role of law as a source of ethical guidance. (150 Words)

Laws act as agent of change towards a progressively ethical behaviour at individual and social level.

LAWS – SOURCE OF ETHICAL GUIDANCE

- Codifies expected conduct in society
- Enacted formally by governing authority
- Deviants from provisions of law attract penal action
- Democratic governments facilitate for law to be agent of change
- In undemocratic states, laws can engender injustice instead of promoting justice
 - ✓ E.g.: Laws enacted by Nazi regime against Jews
 - ✓ Ancient laws that supported slavery and human trafficking
 - ✓ Laws banning abortion despite threat to mother and child in catholic countries
- Laws act as yardstick to decide whether an action or decision is ethical because
 - ✓ It is thoroughly deliberated by learned man;
 - ✓ Vetted by public representatives in most cases; and
 - ✓ Institutions like judiciary to ensure laws should not harm anyone.
- When society doesn't have a collective opinion regarding the correctness of an action, we can resort to law. If law prohibits it, it is unethical.
 - ✓ E.g.: Selling black tickets.

CONCLUSION

Laws can be successful as agent of change only with participation and awareness among citizens regarding the same.



Elaborate the following topics in the context of civil services:
(a) Empathy, (b) Dedication to Public Service and (c) Compassion (250 Words)

Empathy, Dedication to public service and Compassion towards weaker sections are part of foundational values of civil services. They enable good and ethical governance in the society.

EMPATHY

- Implies placing oneself in the shoes of others to experience their experience
- Part of emotional intelligence
- A civil servant needs to have empathy towards public at large and towards his/her employees.

APPLICATION IN CIVIL SERVICE

- Responsible to bring socio-economic transformation that needs empathizing with all sections, especially backward sections
 - ✓ E.g.: Civil servant demolishing road side buildings must empathize with plight of city dwellers.
 - ✓ To empathize with poor to successfully implement poverty alleviation measures.

DEDICATION TO PUBLIC SERVICE

- Public services mostly include Police service, Judicial service and provision of basic infrastructure like electricity, sewerage etc.
- Dedication implies complete involvement of oneself in delivery of public services.

APPLICATION IN CIVIL SERVICE

- Their actions directly impact people's lives.
- Disruption in public service delivery could scuttle societal development.



E.g.: School teacher would take extra sessions at school to help laggard students
Government doctor wouldn't setup private practice.

COMPASSION TOWARDS WEAKER SECTIONS

- Rich, educated and influential citizens can meet their needs. But, the vulnerable sections like women, children, SCs and STs need external support to improve their lives.
- Compassion gives the motivation to stand for the interests of voiceless sections.

APPLICATION IN CIVIL SERVICE

- Vast scope for civil servant enables equity in society.
 - ✓ Prashant Nair, IAS, started an initiative called Compassionate Kozhikode.
 - ✓ Online posting of requirements of houses for mentally challenged, children etc. Donors can extend the help.

CONCLUSION

These values play a major role in reducing distance between authority and common man. It results in people friendly governance.

Discuss the ethical framework for ministries as recommended by 2nd ARC. (150 Words)

2nd Administrative reforms commission provides for transparent, accountable and participatory approach in governance. Apart from code of conduct and code of ethics, it gave recommendations to realize the same for ministries.

ETHICAL FRAMEWORK FOR MINISTRIES

CODE OF CONDUCT

- More in nature of prohibitions
- Disclose assets, liabilities and business interests before taking oath
- Refrain from buying from or selling to government any immovable property
- Report if any family member sets up business
- Not accept contributions and valuable gifts from close relatives
- Accept awards only from organizations whose credentials are unimpeachable

CODE OF ETHICS

- Provide guidance on how ministries should uphold highest stands of ethical and construction conduct
- Uphold principles of collective responsibility
- Be accountable to Parliament
- Ensure no conflict between public and private interests
- Keep roles of minister and public representative separate
- Not use government resources for private use
- Ensure economic use of public money



FURTHER RECOMMENDATIONS

- Dedicated units at PMO/CMO to monitor code of conduct and ethics
- PM/CM to be duty bound as role model to other ministries
- Annual report on observance of these codes to concerned legislature
- Code of Conduct, ethics and annual report should be in public domain

CONCLUSION

Strict enforcement of these codes in both letter and spirit along with constant public scrutiny by informed citizens is the need of the hour.

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SINCERE THANKS
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